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FILED

09 FEB 26 PM 2:54

U.S. DISTRICT COURT
SOUTHERN DISTRICT OF CALIFORNIA

DEPUTY

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF CALIFORNIA

FRANK W. MICHELL; MARY
CHRISTINE MICHELL; and
CHRISTOPHER DAMITZ,

Plaintiffs,

v.

UNITED STATES OF AMERICA; and
DOES 1 through 20, inclusive,

Defendants.

CASE NO.

'09 CV 0387 BTM JMA

COMPLAINT FOR DAMAGES FOR
PERSONAL INJURIES

1. Negligence
2. Dangerous Condition of Public Property
3. Loss of Consortium

GENERAL ALLEGATIONS

1. This is an action arising under the Federal Tort Claims Act 28 U.S.C. §§ 2671 et seq. This Court is vested with original jurisdiction to hear this matter pursuant to, 28 U.S.C. § 1346 (b)(1), which provides in part that "[t]he district courts . . . shall have exclusive jurisdiction of civil actions on claims against the United States, for money damages, accruing on and after January 1, 1945, for injury or loss of property, or personal injury or death caused by the negligent or wrongful act or omission of any employee of the Government while acting within the scope of his office or employment, under circumstances where the United States, if a private person, would be liable to the claimant in accordance with the law of the place where the act or omission occurred."

1 2. This Complaint, action and the damages sustained by Plaintiffs arise out
2 of multiple vehicle crashes resulting from negligence and a dangerous condition of
3 public property, created by Defendant, itself and by and through United States Customs
4 and Border Protection personnel on State Route 94 in an unincorporated area of San
5 Diego County, State of California, on or about August 27, 2006, and therefore venue is
6 proper in this Court.

7 3. At said time and place, plaintiff, FRANK W. MICHELL was the driver of a
8 2005 Honda CBR 1000 motorcycle, California license plate number 17N0019, which
9 was eastbound on State Route 94, approximately 2.1 miles east of Otay Lakes Road, in
10 an unincorporated area of San Diego County, State of California.

11 4. At said time and place, plaintiff, CHRISTOPHER DAMITZ was the driver of
12 a 2000 Yamaha YZF R1 motorcycle, California license plate number 1644672, which
13 was eastbound on State Route 94, approximately 2.1 miles east of Otay Lakes Road, in
14 an unincorporated area of San Diego County, State of California.

15 5. At the time of this incident, Plaintiffs were and are citizens and residents
16 of this County and State.

17 6. All defendants named herein are governmental entities organized
18 pursuant to the Constitution of the United States or of any state.

19 7. The true names and capacities, whether individual, corporate, associate
20 or otherwise of defendant DOES 1 through 20 inclusive, are unknown to plaintiffs, who
21 therefore sue said defendants by such fictitious names. Plaintiffs are informed and
22 believe and thereon allege that each of the defendants herein designated as a DOE is
23 responsible in some manner for the events and happenings herein referred to and
24 caused injuries and damages legally thereby as hereinafter alleged.

25 8. Plaintiffs are informed and believe and thereon allege that at all times
26 herein mentioned, each negligent actor and each defendant was the agent, servant and
27 employee of each of the remaining defendants, and at all times herein mentioned, each
28 was acting within the time, place and scope of said agency and employment.

1 9. At all times herein mentioned, eastbound State Route 94, approximately
2 2.1 miles east of Otay Lakes Road, in an unincorporated area of San Diego County,
3 State of California was an open and public street and highway.

4 10. Plaintiffs, through counsel, submitted a Federal Tort Claim to the federal
5 government through the U.S. Customs and Border Protection on or about April 23,
6 2008. Plaintiffs' counsel, on or about November 13, 2008, received an undated letter
7 from U.S. Customs and Border Protection denying all Plaintiffs' claims in their entirety.
8 In accordance with 28 U.S.C. § 2675(a), Plaintiffs now file this action.

9 **FIRST CLAIM FOR RELIEF**

10 **FOR NEGLIGENCE AGAINST EACH DEFENDANT**

11 11. Plaintiffs incorporate each and every allegation contained above as if set
12 forth at length herein.

13 12. At said time and place defendant UNITED STATES OF AMERICA's
14 employee, acting within the course and scope of his employment, negligently stopped
15 his vehicle in the middle of the only eastbound lane of traffic on State Route 94.
16 Defendant's vehicle was negligently positioned in the vicinity of a blind curve on
17 eastbound State Route 94, without any warning to approaching eastbound motorists.

18 13. At said time and place the subject employee of Defendant UNITED
19 STATES OF AMERICA was driving and operating a U.S. Government vehicle, and
20 acting in the course and scope of his federal employment.

21 14. At the said time and place, each defendant and its employees, and each
22 of them, did so negligently and carelessly stop, position, park, operate, maintain, and
23 supervise their vehicle and other vehicles on State Route 94, without warning to
24 oncoming motorists. Defendants failed to institute or implement proper traffic control
25 plan for lane closure and/or warn/alert traffic of the impending dangers created by them
26 and allowed traffic to suddenly and without warning be confronted with a lane closure
27 which severely and dangerously impeded the safe, free flow of vehicular traffic, and
28 caused multiple vehicular collisions to occur. Plaintiffs FRANK W. MICHELL and

1 CHRISTOPHER DAMITZ were leaving the blind curve on eastbound State Route 94,
 2 when they came upon the lane blockage created by defendants, and each of them.
 3 Having had no warning of the impending lane blockage, Plaintiffs FRANK W. MICHELL
 4 and CHRISTOPHER DAMITZ were forced to take evasive action, including leaving their
 5 lane of travel to avoid colliding with vehicles ahead. As a result, Plaintiffs sustained
 6 injuries as more fully described herein.

7 15. At the said time and place, each defendant and its employees, and each
 8 of them, did so negligently and carelessly stop, position, park, operate, maintain and
 9 supervise their vehicle and other vehicles on State Route 94, without providing any
 10 warning to traffic of the lane closure, thereby legally causing the hereinafter described
 11 injuries and damages to plaintiffs FRANK W. MICHELL, MARY CHRISTINE MICHELL
 12 and CHRISTOPHER DAMITZ .

13 16. The subject employee of Defendant's, negligence was the legal cause of
 14 the collision, and such negligence is imputed to defendant UNITED STATES OF
 15 AMERICA.

16 **SECOND CLAIM FOR RELIEF**

17 **DANGEROUS CONDITION OF PUBLIC PROPERTY**

18 **AGAINST EACH DEFENDANT**

19 17. Plaintiffs incorporate each and every allegation contained above as if set
 20 forth at length herein.

21 18. At said time and place, The United States of America, by and through its
 22 agents, including the Customs and Border Protection, servants, employees and
 23 independent contractors, created a dangerous condition of public property when it's
 24 personnel negligently stopped, positioned, parked, operated, maintained, and
 25 supervised its vehicle(s) and other vehicles on State Route 94, approximately 2.1 miles
 26 east of Otay Lakes Road, in an unincorporated area of San Diego County, State of
 27 California.

28 19. At said time and place, The United States of America, by and through its

1 agents, including the Customs and Border Protection, servants, employees and
2 independent contractors, acting within the course and scope of their employment,
3 created a dangerous condition on the roadway by the placement of their vehicles and
4 supervision of other vehicles and by failing to warn advancing traffic of the hazard it had
5 created. Defendant's employee left his vehicle at a complete stop squarely in the only
6 eastbound lane of travel at that location on State Route 94, blocking the flow of traffic in
7 the vicinity of a blind curve. Defendant's employee(s) failed to place cones, warning
8 devices, signs, employees, personnel or take any other steps to warn approaching
9 traffic of the hazard Defendant had created in blocking the roadway. In creating this
10 dangerous condition, Defendants, THE UNITED STATES OF AMERICA, and DOES 1
11 through 20 created a foreseeable and extreme hazard for vehicles and motorcycles
12 utilizing the subject roadway as it was otherwise intended to be used.

13 20. At said time and place, employees of Defendant UNITED STATES OF
14 AMERICA, were driving and operating U.S. Government vehicles, and were acting in
15 the course and scope of their federal employment.

16 21. At the said time and place, each defendant and its employees, and each
17 of them, did so negligently and carelessly stop, position, park, operate, maintain, and
18 supervise, their vehicle and other vehicles, failed to institute and/or implement
19 appropriate and/or required measures, policies and procedures so as to create a
20 hazardous and dangerous condition on State Route 94, of which there was no warning
21 to oncoming motorists. Plaintiffs FRANK W. MICHELL and CHRISTOPHER DAMITZ
22 came upon the stopped vehicles with no warning, in the vicinity of a blind curve on
23 eastbound State Route 94 and were forced to take evasive action, including leaving the
24 only lane of travel in their direction to avoid colliding with stopped vehicles because the
25 roadway ahead was blocked by Defendants THE UNITED STATES OF AMERICA, and
26 DOES 1 through 20.

27 22. At the said time and place, each defendant and its employees, and each
28 of them, did so negligently and carelessly stop, position, park, operate, maintain, and

1 supervise, their vehicle and other vehicles, so as to create a hazardous and dangerous
2 condition on State Route 94, thereby legally causing the hereinafter described injuries
3 and damages to plaintiffs FRANK W. MICHELL, MARY CHRISTINE MICHELL and
4 CHRISTOPHER DAMITZ.

5 23. At the said time and place, each defendant and its employees, and each
6 of them, committed the following negligent acts on or around State Route 94, in the
7 County of San Diego, State of California, and surrounding areas: Defendants
8 negligently created and/or failed to create a transportation plan and/or traffic control
9 plan, failed to follow any rules, regulations, laws, standards and/or guidelines relating to
10 planning and carrying out lane closures on roadways, safe, proper and gradual
11 channelization of traffic, lane and shoulder closures, and markings or delineations to
12 alert/warn traffic during construction projects on the subject property. The defendants,
13 and each of them, failed to create/use proper traffic control procedures and/or traffic
14 control plans including failing to properly utilize law enforcement to set-up, carry-out,
15 monitor, oversee and warn of a lane closure and changes in traffic control and
16 conditions all of which resulted in a hazardous and dangerous condition which caused
17 the subject incident and the injuries to plaintiffs.

18 24. The negligence of Defendants' employee(s) was the legal cause of the
19 multiple collisions, and such negligence is imputed to defendant UNITED STATES OF
20 AMERICA.

21 25. As a direct and legal result of the aforesaid dangerous condition of public
22 property created by defendant, negligence and carelessness of the defendant UNITED
23 STATES OF AMERICA, and DOES 1 through 20, and each of them, plaintiffs sustained
24 the injuries and damages alleged.

25 26. As a direct and legal result of the aforesaid dangerous condition of public
26 property created by defendant, negligence and carelessness of each defendant and its
27 employees, and each of them, plaintiffs were injured in their health, strength and
28 activity, sustaining severe shock and injury to their nervous systems and persons, and

1 causing plaintiffs mental, physical and nervous pain and suffering and resulting in their
2 disability, all to their general damage in sums which will be shown according to proof.

3 27. As a direct and legal result of said negligence and carelessness of each
4 defendant and its employees, and each of them, plaintiffs were compelled to and did
5 incur expenses for medical care, hospitalization and other incidental expenses and will
6 have to incur additional like expenses in the future, all in amounts presently unknown to
7 them. Plaintiffs therefore ask leave of court either to amend this complaint so as to
8 show the amount of their medical expenses, when ascertained, or to prove said
9 amounts at the time of trial.

10 28. As a direct and legal result of the aforesaid carelessness and negligence
11 of each defendant and its employees, and each of them, plaintiffs were disabled and
12 may be disabled in the future and thereby be prevented from attending to the duties of
13 their usual occupations. Plaintiffs have therefore lost earnings and may continue to
14 lose earnings in the future, all in amounts presently unknown to them. Plaintiffs ask
15 leave of court either to amend this complaint to show the amount of their lost earnings,
16 when ascertained, or to prove said amounts at the time of trial.

17 29. As a direct and legal result of the aforesaid negligence and carelessness
18 of each defendant and its employees, and each of them, the said motorcycles and
19 other property used by plaintiffs was damaged; and plaintiffs thereafter were denied the
20 use of said vehicles and other property, to plaintiffs' further damage, all in amounts
21 which will be shown according to proof.

22 **THIRD CLAIM FOR RELIEF**

23 **LOSS OF CONSORTIUM**

24 30. Plaintiff MARY CHRISTINE MICHELL incorporates each and every
25 allegation contained above as if set forth at length herein.

26 31. At all relevant times mentioned herein, plaintiff, MARY CHRISTINE
27 MICHELL, was the wife of plaintiff, FRANK W. MICHELL.

28 32. That as a legal result of the said acts of the defendants, and each of

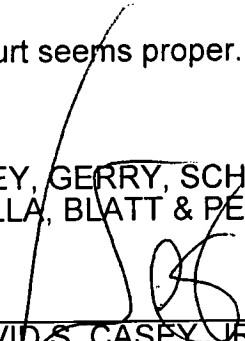
1 them, plaintiff, MARY CHRISTINE MICHELL, has been deprived of the services and
2 consortium of plaintiff, FRANK W. MICHELL, all to her damage in a sum which will be
3 shown according to proof.

4 WHEREFORE, plaintiffs pray for judgment against defendants, and each of
5 them, as follows:

- 6 1. For general damages according to proof;
- 7 2. For loss of earnings, medical expenses, property damage, loss of use and
8 all incidental expenses according to proof;
- 9 3. For loss of consortium as to Plaintiff, MARY CHRISTINE MICHELL;
- 10 4. For costs of suit incurred herein; and
- 11 5. For such and further relief as to the Court seems proper.

12
13 DATED: 2-26-09

CASEY, GERRY, SCHENK,
FRANCAVILLA, BLATT & PENFIELD, LLP

14
15 By: 
16 DAVID S. CASEY, JR.
17 Attorneys for Plaintiffs
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JS 44 (Rev. 12/07)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the local docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

I. (a) PLAINTIFFS

Frank W. Michell, Mary Christine Michell, Christopher Damitz

(b) County of Residence of First Listed Plaintiff San Diego
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorney's (Firm Name, Address, and Telephone Number)

Casey, Gerry, Schenk, Francavilla, Blatt & Penfield LLP
110 Laurel St, San Diego, CA 92101 (619) 238-1811

DEFENDANTS

United States of America

County of Residence of First Listed Defendant San Diego
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE
LAND INVOLVED.

Attorneys (If Known)

09 CV 0387 BTM JMA

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☒ 2 U.S. Government Defendant
☐ 3 Federal Question (U.S. Government Not a Party)
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | | | | | |
|---|----------------------------|----------------------------|---|----------------------------|----------------------------|
| | PTF | DEF | | PTF | DEF |
| Citizen of This State | ☐ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☒ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury PERSONAL INJURY ☐ 362 Personal Injury - Med. Malpractice ☐ 365 Personal Injury - Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 610 Agriculture ☐ 620 Other Food & Drug ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 630 Liquor Laws ☐ 640 R.R. & Truck ☐ 650 Airline Regs. ☐ 660 Occupational Safety/Health ☐ 690 Other ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Mgmt. Relations ☐ 730 Labor/Mgmt. Reporting & Disclosure Act ☐ 740 Railway Labor Act ☐ 790 Other Labor Litigation ☐ 791 Empl. Ret. Inc. Security Act	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 810 Selective Service ☐ 850 Securities/Commodities/Exchange ☐ 875 Customer Challenge 12 USC 3410 ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 892 Economic Stabilization Act ☐ 893 Environmental Matters ☐ 894 Energy Allocation Act ☐ 895 Freedom of Information Act ☐ 900 Appeal of Fee Determination Under Equal Access to Justice ☐ 950 Constitutionality of State Statutes
REAL PROPERTY	CIVIL RIGHTS	PRISONER PETITIONS	IMMIGRATION	
☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 444 Welfare ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 440 Other Civil Rights	☐ 510 Motions to Vacate Sentence ☐ Habeas Corpus: ☐ 530 General ☐ 535 Death Penalty ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition	☐ 462 Naturalization Application ☐ 463 Habeas Corpus - Alien Detainee ☐ 465 Other Immigration Actions	

V. ORIGIN

(Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from another district (specify)
☐ 6 Multidistrict Litigation
☐ 7 Appeal to District Judge from Magistrate Judgment

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
Federal Tort Claims Act 28 USC 2671, et seq.

Brief description of cause:

Motor vehicle collisions involving US Customs and Border Patrol

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23
 DEMAND \$ 13,507,555.83

CHECK YES only if demanded in complaint:

JURY DEMAND: ☐ Yes ☒ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

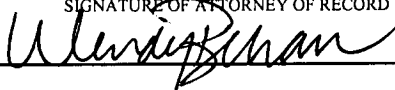
JUDGE

DOCKET NUMBER

DATE

02/25/2009

SIGNATURE OF ATTORNEY OF RECORD



FOR OFFICE USE ONLY

RECEIPT #

160501

AMOUNT

6350

APPLYING IFP

JUDGE

MAG. JUDGE

OF

LAC

2/26/09

**UNITED STATES
DISTRICT COURT**
SOUTHERN DISTRICT OF CALIFORNIA
SAN DIEGO DIVISION

160501 - TC

**February 26, 2009
14:52:17**

Civ Fil Non-Pris

USAO #.: 09CV0387

Judge.: BARRY T MOSKOWITZ

Amount.: \$350.00 CK

Check#.: 61403

Total-> \$350.00

FROM: MICHELL VS USA